Ministerial Resolution No(51) for the year 2021 regarding cases in which health data and information may be stored or transferred outside the country

’After perusal of Federal Law No. (1) of 1972. regarding the ministries ,competencies and the ministry’s powers and its amendments

And Federal Decree - Law No. 4 of 2016 regarding medical liability

Federal Law No. (2) of 2019 regarding the use of information and communication technology in the healthfield,and its executive regulations

And Cabinet Resolution No. (11) of 2021 regarding the organizational structure of ,the Ministry of Health

Based on the requirements of the public interest

Decide the following

Article 1

Definitions

1- The definitions of the words and phrases mentioned in Federal Law No. 2 of referred to are the same as the definitions of the same words and phrases 2019 .mentioned in this decision

2- the meaning of this resolution, the phrase “health services provided within the state” means any health work or procedure carried out by a health facility ,operating within the state, whether it is within the scope of diagnosis Prevention.treatment, rehabilitation or health monitoring ,

3- In cases where the patient’s consent is required, Federal Decree-Law No. 4 of 2016 regarding medical liability shall be applied

:Article 2

Health data and information may not be stored or transferred outside the country if it is related to health services provided inside the country, with the exception of the :following cases

1. Health information and data for patients who are being treated outside the country and within the limits of the necessary treatment procedures
2. Information and data related to samples that sent to laboratories outside the .country
3. Information and data that are used within the framework ofscientific research with commitment ,The laws in force in the country and the controls, standards ,conditions and procedures related to medical research at the state level provided that each research is approved separately by the concerned health authority
4. The information and data that insurance institutions and claims management institutions need within the scope of their procedures to provide health insurance coverage and within the procedures related to the competence of each of them, after obtaining the approval of the concerned health service recipient
5. data and information requested by the competent organizations cooperating with the state, provided that this is within the limits of the purpose of requesting such data and information
6. Information and data in simple medical devices and tools and the like and used by the public based on personal use and entails recording some simple medical data such as blood pressure, blood sugar, oxygen saturation rate and similar simple medical data
7. Information and data related to the prevention, treatment, and diagnosis of ,the patient that may cause side, adverse, or negative reactions, or the like within the limits, conditions, and practices of good pharmacovigilance

8. Any other health information or data that the health authority agrees to transfer or store outside the country, with a commitment to the following
    - This data or information shall not be confidential in nature for considerations related to public security and in the public interest or public health
    - The disclosure of this information or data shall not lead to the disclosure of the medical secret of the patient unless there is written consent from him
9. Information and data that are used within the scope of providing tele- health services, provided that the following are adhered to
    - Access to the system is provided to the concerned doctor for a specified . period to allow him to view only the information and data he needs
    - In the event that it is necessary to send a specific report or medical picture, the report or picture will be sent only and to the concerned doctor only
    - The written consent of the patient is taken

The information and data of persons that they personally request to be . 10 transferred outside the country or received for use outside the country, provided that the facility or entity that has this information or data receives an official request in this regard by the concerned person or his legal representative

:Article 3

The health data and information listed in Clauses (1, 2, 5, 7 and10 .of Article No (of this Resolution are subject to the following controls 2 :

- Obtaining the written consent of the recipient of the health service or his legal representative
- The sharing of data and information shall be with the entity and the concerned persons only

- The sharing of data and information related to the health condition concerned and to the extent that it is necessary to use such data and information
- That data and information be encrypted before sending it using the best -.encryption standards

,In addition to these controls , for the data and information referred to in Clauses (5 7 ,8 and10 of Article No. 2 of this decision, copies of them must be kept and (stored inside the country regardless of whether they are allowed to be transferred or stored outside the country

:Article 4

The health data and information listed in items (3 and5 of Article No. 2 of this (:resolution are subject to the following controls

- That the data and information is not identifiable
- The sharing of data and information should be with the concerned party only
- The data is encrypted before being sent using the best encryption standards
- That data and information be sent using media that adopt the highest security standards

In addition to these controls, with regard to Clause No. 3 of Article No. 2 of this decision, the sharing of data and information must be for the purpose of scientific research only and not be used for purposes other than the research being carried out

Article 5

Health data and information listed in Clause (4) of Article No. 2 of this Resolution are subject to the following controls :

- That insurance institutions and claims management institutions be among the institutions operating in the country, and that all data and information are stored within the country
- The written consent of the recipient of the health service must be obtained
- That the data and information are not completely transferred
- The insurance policy number can be sent for processing only if there is part of the system involved in processing claims outside the country
- That data and information be encrypted before being sent using the best encryption standards and that it is sent Using media that adopts the highest safety standards

:Article 6

For a patient who comes to the country within the scope of a visit, it is allowed to transfer his health data and information outside the country at his request and for the purpose of fulfilling the health insurance requirements

:Article 7

Any other provision inconsistent with or inconsistent with the provisions of this resolution shall be repealed

:Article 8

This decision shall be published in the Official Gazette and shall come into force on the day following the date of its publication

Abdul Rahman bin Muhammad Al Owais

Minister of Health and Community Protection

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